

**COURT OF APPEALS NO. 84450-4
IN THE COURT OF APPEALS
DIVISION 1
OF THE STATE OF WASHINGTON**

ZACKARIAH BENNETT
Appellant

and

MELVINA MANNING
Respondent

Motion to Reconsider

ISSUES	3
On Issue of Mootness	3
On Issue of Deadline Extensions	5
On Issues of Law	6
On Issues of Discretion & Evidence	7
Spoliation	7
Discretion	7
Privilege	8
Privacy	9
Perjury	9
Closing	10
PRINCIPAL POLICY GOALS OF THE WASHINGTON STATE JUDICIAL BRANCH	12

I come now before the court, requesting reconsideration.

The Honorable Justice Hazelrigg makes it clear from the first paragraph of the decision that I submitted a horrible attempt at a brief, and rightly so. My first attempt was rejected on format issues (see: Public - Letter - Other - 8/31/2023 - Return Brief); the final result was what I managed to mash into the template I learned to make for it to be accepted. It lost most of its substance, but at least it was accepted.

That being said, I will attempt to correct the apparent misunderstandings.

ISSUES

On Issue of Mootness

I did not address the issue of mootness; partially due to ignorance of its existence, and partially due to the fact that it is not moot. In this small farming community, those allegations are equivalent to being branded. This is a matter of Reputation, of Honor, and of Justice - and as I stated on record, it is causing me significant hardship.¹

In addition, an expired DVPO carries serious legal implications long after it is declared “moot” (and therefore not eligible for review) as seen in this case.² It is attributed negative weight purely due its existence, and accepted as true without another thought nor moment spared to evaluate the contents of the document..³

As long as the court retains the ability to “*fashion some form of meaningful relief, “then that” is sufficient to prevent th[e] case from being moot.*”⁴ “*Such relief would of course not be fully satisfactory, but with respect to the case as a whole, even the availability of a partial remedy is sufficient to prevent a case from being moot.*”⁵ “*While a court may not be able to return the parties*

¹ RP pg-50, lines 2-8

² RP pg-56, lines 7-15

³ [08-3-03956-4]Motion/Declaration for Ex Parte Restraining Order and for Order to Show Cause [05-29-2008]

⁴ Church of Scientology, 506 U.S. at 12-13. See also, e.g., Chafin, 568 U.S. at 177(“[E]ven the availability of a partial remedy is sufficient to prevent a case from being moot.”) (quoting Calderon, 518 U.S. at 150) (brackets and internal quotation marks omitted).

⁵ See Chafin, 568 U.S. at 177 (quoting Calderon, 518 U.S. at 150) (brackets and internal quotation marks omitted)

*to the status quo ante . . . a court can fashion some form of meaningful relief in circumstances such as these . . . The availability of this possible remedy is sufficient to prevent this case from being moot.”*⁶

Though not ideal, there is an acceptable alternative: moot with Munsingwear vacatur. Munsingwear addresses what to do with a court of appeals decision when the case becomes moot while it is pending on review by a higher court (whether the Supreme Court or a court of appeals). In Munsingwear, the Supreme Court held that, where intervening mootness prevents appellate review of the underlying decision, the decision below ordinarily should be vacated. Disposing of a moot case in this manner thereby “*clears the path for future relitigation of the issues between the parties and eliminates a judgment, review of which was prevented through happenstance.*”⁷ “*Put another way, the Munsingwear procedure for disposing of cases that become moot on appeal “prevent[s] a judgment, unreviewable because of mootness, from spawning any legal consequences,” and thereby ensures that the . . . appellate courts, rather than individual litigants, have the last word on the answers to legal questions.*”⁸

Happenstance does seem to apply here, as Mrs. Manning DID file a motion for the DVPO to be renewed. It would have been granted, but it was mistakenly E-filed, so it was never addressed by the court as that motion requires filing in person (according to the email response I received from clerk’s office).

Mrs. Manning filed the motion to renew the order on 05/02/2023, well ahead of its expiration, which clearly indicates an adversarial (non-moot) position.⁹ Only after she realized the renewal window for the DVPO had passed, and my brief had been filed, that she decided to retain counsel and claim the issue is suddenly moot in an effort to evade review.

⁶ Church of Scientology of Cal. v. United States, 506 U.S. 9, 12-13 (1992)

⁷ United States v. Munsingwear, inc., 340 U.S. at 40

⁸ See id. at 41

⁹ 22-2-09380-3, sub# 99, 05/02/2023

On Issue of Deadline Extensions

As was noted, I filed four deadline extensions. The fourth request was for medical reasons, after a motorcycle accident where I had the misfortune of being 'T-boned' by a deer on the hi-way at 60mph.

The first three requests for deadline extension were directly related to issues with King County Superior Court involving my Motions for Order of Indigence, and the appeal of which caused a stay on this matter (84450-4) from February 14, 2023 through July 21, 2023 while the appeal (#84951-4-I) was decided. A mandate was issued in my favor, though it was seemingly ignored by the lower court, along with my re-filed Motion for Order of Indigence.

As observed by Judge Anne Ellington: *"the right to access to the courts is fundamental to our system of justice. Indeed, it is the right "conservative of all other rights." . . . Where rights and responsibilities are adjudicated in the absence of representation, the results are often unjust. If representation is absent because of a litigant's poverty, then likely so is justice, and for the same reason."*¹⁰

In *Hardy v. United States*, Justice Goldberg stated: *"The present case, where counsel was denied petitioners on appeal, shows that the discrimination is not between possibly good and obviously bad cases," but between cases where the rich man can require the court to listen to argument of counsel before deciding on the merits, but a poor man cannot. There is lacking that equality demanded by the Fourteenth Amendment where the rich man, who appeals as of right, enjoys the benefit of counsel's examination into the record, research of the law, and marshaling of arguments on his behalf, while the indigent, already burdened by a preliminary determination that his case is without merit, is forced to shift for himself. The indigent, where the record is unclear or the errors are hidden, has only the right to a meaningless ritual, while the rich man has a meaningful appeal."*¹¹

¹⁰ *Miranda v. Sims*, 991 P.2d 687 (Wash. Ct. App. 2000). (quoting *Chambers v. Baltimore & Ohio R.R.*, 207 U.S. 142, 148 (1907))

¹¹ *Hardy v. United States*, 375 U.S. 277 (1964) at 289 n.7 (Goldberg, J., concurring) (citations omitted) (quoting ATT'Y GEN.'S COMM. ON POVERTY & THE ADMIN. OF CRIMINAL JUSTICE, REPORT ON POVERTY AND THE ADMINISTRATION OF FEDERAL CRIMINAL JUSTICE 8 (1963))

On Issues of Law

As was pointed out on pg-2 of the opinion, 26.50 RCW (2019) was the chapter that pertained to domestic violence at the time.

There are several issue here:

The court made its ruling based on a definition of domestic violence not found in 26.50 RCW (2019). The court stated: *“our law defines domestic violence to include unlawful harassment, and that was the -- that was the portion of the definition of domestic violence that the Court thought was most relevant to this situation.”*¹²

The court then defined *“Unlawful harassment, as our law defines it, means a knowing and willful course of conduct directed as a specific person that seriously alarms, annoys, harasses, or is detrimental to such person and that serves no legitimate or lawful purpose. The course of conduct must be such as would cause a reasonable person to suffer substantial emotional distress and must actually cause substantial emotional distress to the petitioner.”*¹³

For the sake of argument, if it was binding law, it wouldn't apply, as the court went on to find:

*“Three, whether the respondent's course of conduct appears designed to alarm, annoy, or harass the petitioner. I -- I didn't find that that -- that the respondent's conduct here was designed to alarm, annoy, or harass the petitioner. I think the respondent is focused on getting access to the child, and I don't think that his intention is to alarm, annoy, or harass the petitioner. So I -- I didn't find that that one -- that factor was applicable.”*¹⁴

Unlawful harassment (DV) requires “a knowing and willful course of conduct directed as a specific person that seriously alarms, annoys, harasses, or is detrimental to such person”.¹⁵ That definition, however, is not from 26.50(3) RCW; it is the definition from 7.105.010(35)(a) RCW as redefined by the Laws of 2021, ch. 215, which was not in effect at the commencement of this matter and therefore not binding.

¹² RP, pg-53, lines 10-13

¹³ RP, pg-53, lines 13-21

¹⁴ RP, pg-54 line-20

¹⁵ RCW 7.105.010(35)(a)

On Issues of Discretion & Evidence

Spoliation

“Aside perhaps from perjury, no act serves to threaten the integrity of the judicial process more than the spoliation of evidence.”¹⁶

According to USLegal.com, “... a person [that] negligently or intentionally withholds or destroys relevant information that will be required in an action is liable for spoliation of evidence.”.

*“Spoliation of evidence is an act that is prohibited by American Bar Association’s Model Rules of Professional Conduct, Rule 37 of Federal Rules of Civil Procedure, and Title 18 United States Code. Sanctions for spoliation are preventative, punitive and remedial in nature. Separate tort actions are also permitted.”*¹⁷

In *Pier 67, Inc. v. King County*, 89 Wash.2d 379, 573 P.2d 2 (Wash. 1977), the Court held: *“where relevant evidence which would properly be a part of a case is within the control of a party whose interests it would naturally be to produce it and he fails to do so, without satisfactory explanation, the only inference which the finder of fact may draw is that such evidence would be unfavorable to him.”*¹⁸

Washington Court of Appeals [Div. 2] stated that *“In deciding whether to apply a rebuttable presumption in spoliation cases, two factors control: “(1) the potential importance or relevance of the missing evidence; and (2) the culpability or fault of the adverse party.”*¹⁹

In its recent decision in *Seattle Tunnel Partners v. Great Lakes Reinsurance (UK) PLC*, the appellate court describes six factors to consider when evaluating the importance of missing, lost, or destroyed evidence in the spoliation context, including: *“(1) whether the missing evidence would provide direct evidence of a claim or defense;”*²⁰

Discretion

The court erred in denying my repeated request for production of the security footage, as it was sine qua non for the truth to be had, and for justice to be served. The court has the

¹⁶ *United Medical Supply Co. v. United States*, 77 Fed. Cl. 257, 258-59 (Fed. Cl. 2007)

¹⁷ <https://civilprocedure.uslegal.com/discovery/spoliation-of-evidence/>

¹⁸ *Pier 67, Inc. v. King County*, 89 Wash.2d 379, 573 P.2d 2 (Wash. 1977)

¹⁹ *Marshall v. Bally’s Pacwest, Inc.*, 94 Wash. App. 372, 381-383, 972 P.2d

475, 480 (Wash. App. Div. 2, 1999)

²⁰ *Seattle Tunnel Partners v. Great Lakes Reinsurance (UK) PLC*, __ P.3d __ (Wash. Ct. App. Mar. 27, 2023)

discretion to authorize requests for production, as the law clearly states in RCW 7.105.200 Hearings—Procedure:

“(1) Hearings under this chapter are special proceedings. The procedures established under this chapter for protection order hearings supersede inconsistent civil court rules. Courts should evaluate the needs and procedures best suited to individual hearings based on consideration of the totality of the circumstances, including disparities that may be apparent in the parties' resources and representation by counsel.” and:

“(7) Prehearing discovery under the civil court rules, including, but not limited to, depositions, requests for production, or requests for admission, is disfavored and only permitted if specifically authorized by the court for good cause...”²¹

Privilege

The court erred in accepting the document labeled Declaration of John Manning.²² The document is an email, with a cut/paste copy of a [privileged] private conversation between my (at the time) wife and I, from Yahoo Messenger, and which has clearly been edited along the way.

This was illegally obtained by John & Melvina Manning, as Mrs. Manning stated on record:

“THE PETITIONER: (...) [it] was a conversation between Zackariah and Timothy's mom Kelly.

THE COURT: All right. And how did you get a copy of that? Did -- did someone provide that to you?

THE PETITIONER: It was -- when the conversation takes place it all comes out on screen, so we were just able to join the conversation to download the -- all the conversation as it was being said.”²³

RCW 5.60.060(1) forbids it as evidence. RCW 9.73.030 clearly forbids recording/copying the conversation. RCW 9.73.060 dictates **legal action for damages:** *“Any person who, directly or by means of a detective agency or any other agent, violates the provisions of this chapter shall be subject to legal action for damages, to be brought by any other person claiming that a violation of this statute has injured his or her business, his or her person, or his or her reputation. A person so injured shall be entitled to actual damages, including mental pain and suffering endured by him or her on account of violation of the provisions of this chapter, or liquidated damages computed at the rate of one hundred dollars a day for*

²¹ RCW 7.105.200(1)&(7)

²² CP pg-87

²³ RP pg-40, line-22

each day of violation, not to exceed one thousand dollars, and a reasonable attorney's fee and other costs of litigation."

Privacy

The evidence was insufficient to show that respondent intended anything said in the intercepted conversation to be conveyed as a threat, nor is this an action between the parties of the conversation, therefore the exception at RCW 9.73.030(2)(b) does not apply.

*"In People v. Felix (2001) 92 Cal.App.4th 905. After being arrested for kidnapping his ex girlfriend and criminally threatening her fiancé, defendant told a jail psychologist that he was thinking of how he was going to kill his ex girlfriend once he was released. The jail psychologist called the ex girlfriend, who afterward said that the defendant was going to try to kill her. Court of Appeal held that evidence was insufficient to show that defendant intended the psychologist to convey the threat. "[T]here was no evidence that Felix knew [the therapist] would disclose his statements to [his ex girlfriend] or that he wanted them to be revealed." (Id., at p. 913.)"*²⁴

Perjury

Conflicting statements by the Petitioner highlight the lack of truth in them.

I urge the court to closely examine [CP pages 14-15 & pg. 34; and RP pg.40 lines 1-2]. The petitioner did not allege a single act of wrongdoing on my part - she vaguely alleged a legal conclusion (harassment), without any facts sufficient to support the allegation.

This, as well as the spoliation, and her silence on my claims that the video proves my innocence, supports the fact that this action is mala fide. She used the exact same technique of vague & unsubstantiated false allegations to obtain the ex-parte protection order in 2008 that she obtained to legalize her custodial interference (being litigated in cause# 23-2-11352-7), which she had finalized (by order of default) while I was incarcerated in Colorado.

"[A] complaint [does not] suffice if it tenders 'naked assertion[s]' devoid of 'further factual enhancement.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 557 (2007)). The factual allegations within a complaint, if accepted as true, must be sufficient to "state a claim to relief that is plausible on its face." *Twombly*, 550 U.S. at 570. "A claim has facial plausibility when the plaintiff pleads factual

²⁴ SMITH v. WRIGHT et al, No. 1:2020cv03389 - Document 20 (D.D.C. 2021)

content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” Iqbal, 556 U.S. at 678. Courts “do not accept as true, however, the plaintiff's legal conclusions or inferences that are unsupported by the facts alleged.” Ralls Corp. v. Comm. on Foreign Inv. in U.S., 758 F.3d 296, 314-15 (D.C. Cir. 2014)²⁵

“The petition for relief must allege ‘the existence of domestic violence’ and must be accompanied by an affidavit under oath that states specific facts and circumstances supporting relief.” [RCW 26.50.030(1)]

“[T]he law compels a judge to perform her or his best and to issue a ruling as to whether domestic violence occurred and protection is needed. Although we recognize our trial judges as being overworked with crowded dockets, we trust our judges to take the time and conduct a hearing sufficient to arrive at the truth. We believe our trial judges normally possess the ability to find the truth.” [Juarez v. Juarez, 195 Wn. App. 880, 891-92, 382 P.3d 13 (2016)]

Closing

In closing, this case is a sham, and abuse of process. The courts are being used to maintain the kidnapping of a child, and the alienation of his father. Somehow, Mrs. Manning has managed to bypass all the safeguards put in place to protect parental rights - without an investigation, without substantiating a single allegation, without me being given any opportunity to be heard, questioned, or evaluated. All with a finding of fact stating “default”.

I have never in my life been a threat to my mother, nor my children. All I wish is for my son to know I love him, and that I have never given up trying to be a part of his life.

The Manning’s keep my son secluded, with only themselves and my half-sister as his total family. In reality, he has siblings, as well as four generations of assorted relatives that are all barred from contact (mostly due to questioning Melvina as to the reasoning behind her actions).

If the court truly feels this matter isn’t worth the time for the de novo review it should be afforded, then at least remand & vacate so that the matter is free to be litigated in the ongoing cause #23-2-09380-3.

²⁵ SMITH v. WRIGHT et al, No. 1:2020cv03389 - Document 20 (D.D.C. 2021)

Respectfully submitted on March 31st, 2024.

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized, flowing script.

Signed under penalty of perjury as true and correct this day, the
31st of March 2024 In Goldendale, WA

12-pages, 3394 words

PRINCIPAL POLICY GOALS OF THE WASHINGTON STATE JUDICIAL BRANCH

“Justice in all cases shall be administered openly, and without unnecessary delay.” Washington State Constitution, Article I, Section 10.

Washington State’s judicial branch is a constitutionally separate, independent and co-equal branch of government. It is the duty of the judicial branch to protect rights and liberties, uphold and interpret the law, and resolve disputes peacefully through the open and fair administration of justice in the state.

The judicial branch in Washington State is a local and state partnership where local courts, court managers and court personnel work in concert with statewide courts, judicial branch agencies and support systems.

The judicial branch maintains effective relations with the executive and legislative branches of state and local governments, which are grounded in mutual respect.

The Principal Policy Goals of the Washington State Judicial Branch

1. **Fair and Effective Administration of Justice.** Washington courts will openly, fairly, efficiently and effectively administer justice in all cases, consistent with constitutional mandates and the judiciary’s duty to maintain the highest level of public trust and confidence in the courts. Washington courts will affirmatively identify and eliminate bias-based practices and procedures that deny fair treatment for persons due to their race, gender, ability or other personal characteristics unrelated to the merits of their cases.
2. **Accessibility.** Washington courts, court facilities and court systems will be open and accessible to all participants regardless of income, language, culture, ability, or other access barrier.
3. **Access to Necessary Representation.** Constitutional and statutory guarantees of the right to counsel shall be effectively implemented. Litigants with important interests at stake in civil judicial proceedings should have meaningful access to legal representation.
4. **Commitment to Effective Court Management.** Washington courts will employ and maintain systems and practices that enhance effective court management.
5. **Sufficient Staffing and Support.** Washington courts will be appropriately staffed and effectively managed, and court personnel, court managers and court systems will be effectively supported and trained.